

■ By Jhilmil Motihar

The similarity is so striking that for a second you wonder if you are watching the Will Smith-starrer *Hitch* and have accidentally swapped Kevin James for Govinda. The scene where James walks past a newspaper stand and discovers that his plan to make Amber Valetta fall in love with him is the headline of a tabloid has been copied frame by

THE RECYCLE BIN

Indian filmmakers have been blatantly copying foreign films for long. The recent spate of inspirations shows the trend is only growing because of loopholes in copyright laws.



HEY BABYY (THREE MEN AND A BABY)

The Hollywood hit has three men left to take care of an abandoned baby. In Sajid Khan's Indian version, Akshay Kumar, Fardeen Khan and Riteish Deshmukh find themselves in the same spot.

frame and made into *Partner*. Another recent release, *Heyy Babyy*, is a rip-off of the Tom Selleck-starrer *Three Men and a Baby*. And yet, filmmaker Sajid Khan, like all self-respecting Hindi film directors, has gone into overdrive denying reports that his film is 'inspired'. Ask Khan about the premise being the same and he says, "If I have to show a girl and a guy meeting on a ship, is it *Titanic*? If Sanjay Dutt makes patients in a hospital laugh, is it *Patch Adams*? How can people say *Heyy Babyy* is a copy?" The director adds that a lot of people said his film was a rip-off before it released but they've kept quiet after watching it.

For decades, Indian filmmakers have been remaking foreign films, but every time someone points a finger at them, they have one staple answer—"my film's different". The grey issue of plagiarism reared its head recently when news channels flashed breaking news that Will Smith's *Overbrook*

Entertainment and partner Sony Pictures were planning to sue the producers of the laugh-a-minute *Partner* for \$30 million (Rs 122 crore). Their allegation: the Salman-Govinda caper was a direct lift of their 2005 smash hit *Hitch*. Director David Dhawan has gone incommunicado, but Kishore Lulla, chairman and CEO of Eros International, which co-produced the film, says, "We were not served any notice." Speaking on similar lines, Vikramjit Roy, head of publicity, Sony Pictures, India, said that the studio hasn't received any intimation of the producers of *Partner* being sued. There was even speculation about the matter being settled after the intervention of Ronnie Screwvala of UTV.

International films being cloned and redone in our backyard isn't something new to the Indian film industry. But it isn't often that a producer is threatened with copyright infringement. "There are too many loopholes in

the copyright law," says Ashok Saraogi, a criminal lawyer who handled Abu Salem's case, in which he had claimed that the film *Gangster* was based on his life. For a copyright infringement allegation to hold, "the presentation, screenplay and dialogues have to be similar too," says Saraogi.

Within months of an international film becoming a hit, you hear of it being remade in India. Mahesh Bhatt's Vishesh Films runs a mini enterprise of rip-offs. If *Murder* was a near-exact copy of the Diane Lane-Richard Gere starrer *Unfaithful*; *Raaz* was a remake of *What Lies Beneath* and *Collateral* became *The Killer*. Avenues for plagiarism have broadened, with filmmakers now getting access to world cinema. The Korean hit *A Bittersweet Life* got remade into *Awaarapan* and Sanjay Gupta also looked for inspiration in Korea while turning *Old Boy* into *Zinda*.

Though blamed time and again,